

PANEL OPINION

Opinion and disposition

Decided June 15, 2026.

Leora Benton appeals two rulings entered in her Title VII retaliation action against Blue Cedar Compliance, Inc. The district court excluded a materially new subject in Tessa Wynn's late declaration under Rules 26 and 37, then granted Blue Cedar summary judgment on the admitted record. We affirm the exclusion. The court identified the precise disclosure failure, considered the relevant factors, and limited the remedy to the new subject and declaration.

We reach a different conclusion on summary judgment. Without relying on the excluded statement, the record contains evidence of the decisionmaker's knowledge, close timing, a substantial reduction in Benton's score, favorable treatment of retained comparators, target-reaching alternatives that kept Benton, continued performance of her duties, and an expanding explanation sequence. Viewed together and in Benton's favor, that evidence permits a reasonable finding of pretext and but-for causation. We therefore affirm the exclusion, vacate summary judgment and final judgment, and remand without expressing a view on the ultimate merits.

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Jurisdiction and standards of review

The district court entered final judgment on December 19, 2025, and Benton filed her notice on January 16, 2026. We have jurisdiction under 28 U.S.C. § 1291. The December 1 exclusion order merged into the final judgment and is properly before us. No party disputes finality, timeliness, or the district court's federal-question jurisdiction.

We review the disclosure ruling and selected Rule 37(c)(1) consequence for abuse of discretion. That standard permits a range of reasoned responses and does not authorize us to choose a different sanction simply because we might have done so in the first instance. Benjamin v. Sparks identifies surprise, ability to cure, disruption, importance, and explanation as relevant considerations. We review summary judgment de novo, considering admitted evidence and reasonable inferences in the nonmovant's favor. We may not resolve credibility, weigh competing supported explanations, or use material excluded from the merits record to create a factual dispute.

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Protected activity and the RIF

Benton opposed what she described as sex-based allocation of high-visibility audit assignments on January 17, 2025, and filed an EEOC charge on February 3. Blue Cedar received the agency notice on February 10. Human-resources director Mira Solis routed it to operations vice president Draven Pike, who opened the packet, answered a preservation request, attended a February 12 meeting, and admitted knowing before termination that Benton had raised an assignment issue and an EEOC matter.

Finance supplied a \$612,000 annualized savings target. The RIF workbook opened February 14 and covered twenty-three authorized positions. Pike approved scenario B-7 on March 21. It eliminated five filled positions and two vacancies, projected \$618,400 in savings, and included Benton's senior-manager position. Blue Cedar terminated her on March 24, six weeks after receiving the agency notice. The parties agree the savings objective was real. They dispute why Pike selected Benton rather than a different manager in another qualifying arrangement.

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The Wynn declaration and record boundary

Benton's disclosure identified Wynn as a retained comparator with information about assignments, scoring, redistribution, and treatment. Wynn testified at her October 2 deposition about possible Northline coverage if Benton's position were removed. She did not recount protected-activity words in that exchange. On October 13, while reviewing her transcript, Wynn recalled Voss asking after a March 7 calibration meeting: "Leora has made this an HR and EEOC problem; if her position is removed, can you take Northline?"

Wynn reported the substance to Benton on October 14, and Benton sent it to counsel October 15. The supplementation cutoff was October 17. Counsel interviewed Wynn October 20, obtained her signature November 3, served the declaration November 4, and filed it with Benton's November 10 opposition. The district court excluded only the new subject and JA194–JA195. It preserved Wynn's timely comparator evidence and did not apply a sham-affidavit doctrine. We likewise use the declaration only to review that ruling, not to decide the merits.

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Rule 26 required supplementation

Rule 26(a)(1)(A)(i) requires a party to identify persons likely to possess discoverable information and the subjects of that information. Rule 26(e)(1) requires timely supplementation when a prior disclosure or response is materially incomplete or incorrect and the additional information has not otherwise been made known during discovery or in writing. Naming a witness for one subject does not necessarily disclose every materially different subject she later recalls.

The district court reasonably distinguished the known coverage inquiry from the newly asserted protected-activity wording. The latter supplied a motive-related premise absent from Wynn's deposition and from the subject descriptions. It did not merely add a date or clarify which account Wynn handled. Once counsel learned it on October 15, the earlier disclosure and discovery response were materially incomplete. Counsel could have served a subject-only correction or sought leave before the October 17 cutoff. Waiting for a signed declaration did not suspend that duty. The finding of a Rule 26 violation was not legal error or a clearly mistaken reading of the record.

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Rule 37 factors and narrow exclusion

The district court meaningfully considered the Benjamin factors. The new wording created genuine surprise because Blue Cedar had already examined Wynn and defended Voss without it, then filed its summary-judgment motion before service. Cure was possible in an abstract sense, but it would have required renewed witness preparation, supplemental examination, and altered briefing after the discovery close. The pending merits decision and January trial setting made that disruption material. The statement was important, which increased both Benton's interest and Blue Cedar's need for a fair opportunity to test it.

Counsel's explanation did not establish substantial justification. Verification could take time, but it did not prevent notice of the subject or a prompt motion. The court then calibrated the remedy: it excluded the two-page declaration and new subject, preserved every timely comparator subject, imposed no fee, and made no finding that Wynn was untruthful. Other remedies were available, but this one remained within the permissible range. We affirm the December 1 order and carry its precise boundary into our merits review.

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Rule 56 and the retaliation framework

Rule 56 permits judgment only when no genuine dispute of material fact exists and the movant is entitled to judgment as a matter of law. We consider the record as a whole, credit supported evidence for Benton, and draw reasonable inferences in her favor. We do not ask whether Blue Cedar's account is more convincing or whether Benton has already proven retaliation.

Title VII forbids discrimination because an employee opposed an unlawful practice or participated in a Title VII proceeding. Under *Foster v. University of Maryland-Eastern Shore*, the McDonnell Douglas method remains available. Blue Cedar accepts protected activity, adverse action, and the initial causal showing for this motion. It articulated a legitimate savings-and-coverage reason. The ultimate question is whether the evidence permits a reasonable factfinder to find that reason pretextual and retaliation a but-for cause. But-for causation is demanding, but it does not require direct evidence, sole causation, or disproof of every legitimate consideration.

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Knowledge and timing support the cumulative inference

Pike was not merely copied on an unidentified communication. The routing record shows delivery of the agency packet, his open event, and his preservation response. He attended the February 12 meeting and asked when Benton had raised the internal assignment concern. His testimony admitted awareness of that concern and the EEOC matter before he approved B-7. Those facts establish a concrete knowledge basis, although they do not establish retaliatory use by themselves.

Timing adds weight. The workbook opened four days after Blue Cedar received the EEOC notice, Pike approved B-7 on March 21, and Benton was terminated March 24—six weeks after receipt. A real company-wide RIF intervened, so proximity cannot carry the ultimate issue alone. The district court was correct on that point. It erred by treating each additional category as requiring its own motive link rather than asking what the categories reasonably show together. Knowledge and timing provide the context in which the disputed calibration and selection judgments must be viewed.

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A genuine savings target did not compel this selection

Blue Cedar's need to save money is undisputed. B-7 eliminated five filled positions and two vacancies and exceeded the target by \$6,400. The breadth and documentation of that plan are strong evidence for Blue Cedar. But the Title VII question is not whether the company could conduct a RIF. It is why Benton was the manager selected within it.

The workbook modeled C-4, D-2, and E-3, each of which retained Benton and reached the target when paired with a separately modeled \$14,600 archive-hosting consolidation. Those options changed Wynn's Lantern duties, Ibarra's western travel coverage, or Keene's automation scripts while leaving Benton's Northline, Oriole, and remediation responsibilities with her. Pike said he preferred B-7 for continuity, travel, and automation reasons. The alternatives do not prove that answer false. They do show arithmetic did not dictate Benton's removal and make the credibility of the asserted coverage judgments material rather than an impermissible attack on the target itself.

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Score changes and comparator exceptions present factual disputes

Benton entered calibration at 84, the highest score among the four managers, and left at 68 after reductions in continuity, availability, and role uniqueness. Voss and Solis entered the changes; Pike approved them. No new source metric accompanied the sixteen-point decline, and Benton was not interviewed before it. The protocol called for common measurement windows, traceable reasons, and comparable support. Solis's audit left consistency flags open when Pike approved the variances as business-continuity judgments.

At the same time, each retained manager received favorable treatment. Wynn received transition credit through May 30 despite Benton's later-running transitions. Ibarra received availability credit based on planned travel despite Benton's greater completed travel. Keene received an increase to the maximum uniqueness credit for automation scripts without a transfer estimate. Their different portfolios may justify those outcomes. But a reasonable factfinder could instead view the simultaneous exceptions and Benton's unsupported reductions as selective use of flexible criteria. The version log's transparency permits evaluation; it does not resolve the inference in Blue Cedar's favor.

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Redistribution and explanations reinforce the dispute

Benton's performance history was positive, she had no discipline, and the termination register marked her eligible for rehire. Blue Cedar did not claim a discharge for poor performance. It claimed her management position could be eliminated and the work redistributed. After termination, Wynn received Northline, Ibarra received Oriole, Keene received the remediation queue, and Voss took the quality meeting. No replacement manager was hired. That allocation supports a genuine position elimination, but also confirms that Benton's functions remained valuable and had to be absorbed.

The explanation likewise bears two reasonable readings. The termination letter cited budget and redundant management work. The EEOC response added salary, coverage, completion, and availability. Pike later added travel, continuity, automation, and client confidence, although no contemporaneous client complaint existed. Blue Cedar reads those as consistent details. Benton reads them as an account expanding after the event. Contemporaneous documents support parts of the later detail, but not so conclusively that a court may reject Benton's competing inference.

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The district court weighed rather than inferred

The district court listed the evidence cumulatively but then discounted it category by category: the RIF was real, the workbook was transparent, comparators had different duties, alternatives involved different risks, and later explanations could be harmonized. Each observation is a possible trial finding. Together they adopt Blue Cedar's view of disputed evidence rather than ask whether Benton's view is reasonable.

A factfinder could conclude that an undisputed target and legitimate coverage needs drove B-7. It could also conclude that those needs left Pike meaningful choice; that flexible scoring was applied against Benton after he learned of her protected activity; that retained managers received exceptions unavailable to her; and that the company's account grew to defend that choice. The second inference does not rest on mere temporal proximity or disagreement with business wisdom. It rests on documented deviations, comparative treatment, alternatives, and explanations situated in a close knowledge-and-timing sequence. Rule 56 reserves the choice between those supported inferences for the factfinder.

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No excluded statement or subordinate-control finding is necessary

Our conclusion does not rely on Wynn's assertion that Voss used protected-activity wording. The declaration remains excluded from the merits, and we draw no inference about whether the conversation occurred. Nor do we find that Voss directed Pike, supplied a retaliatory instruction, or possessed authority to select the final scenario. Pike was the decisionmaker, and the admitted record does not attribute retaliatory words to him.

The merits dispute nevertheless reaches Pike through admitted evidence. He personally knew of the protected activity, reviewed the competing scenarios, approved the flagged variances, and selected B-7. Benton therefore need not prove a subordinate-influence theory merely to survive summary judgment. Voss's scoring role and coverage input form part of the process Pike approved, but the ultimate inference can rest on his own knowledge and action. At trial, Blue Cedar may persuade the factfinder that Pike acted only on savings and coverage. The present record does not permit us to declare that account the only reasonable one.

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Judgment and remand

We affirm the order excluding the materially new Wynn subject and JA194–JA195 under Rules 26 and 37. Wynn's timely disclosed testimony about duties, scores, and comparator treatment remains admitted. We vacate the order granting summary judgment and the separate final judgment because the independent admitted record presents genuine disputes concerning pretext and but-for causation. The case is remanded for proceedings consistent with this opinion.

We do not decide that retaliation occurred, determine witness credibility, direct judgment for Benton, or restrict the district court's ordinary authority over the remanded action. Each party shall bear its own appellate costs in light of the mixed disposition. Judgment is entered June 15, 2026. Because this is a private civil appeal, a rehearing petition is ordinarily due June 29. Absent a timely petition, stay matter, or modifying order, mandate is ordinarily due July 6. The clerk shall calculate those dates from the actual docket. AFFIRMED IN PART, VACATED IN PART, AND REMANDED.